

Section 12 in The Consumer Protection Act, 1986

12. Manner in which complaint shall be made.—

(1)A complaint in relation to any goods sold or delivered or agreed to be sold or delivered or any service provided or agreed to be provided may be filed with a District Forum by—(a)the consumer to whom such goods are sold or delivered or agreed to be sold or delivered or such service provided or agreed to be provided;(b)any recognised consumer association whether the consumer to whom the goods sold or delivered or agreed to be sold or delivered or service provided or agreed to be provided is a member of such association or not;(c)one or more consumers, where there are numerous consumers having the same interest, with the permission of the District Forum, on behalf of, or for the benefit of, all consumers so interested; or(d)the Central or the State Government, as the case may be, either in its individual capacity or as a representative of interests of the consumers in general.(2)Every complaint filed under sub-section (1) shall be accompanied with such amount of fee and payable in such manner as may be prescribed.(3)On receipt of a complaint made under sub-section (1), the District Forum may, by order, allow the complaint to be proceeded with or rejected:Provided that a complaint shall not be rejected under this sub-section unless an opportunity of being heard has been given to the complainant:Provided further that the admissibility of the complaint shall ordinarily be decided within twenty-one days from the date on which the complaint was received.(4)Where a complaint is allowed to be proceeded with under sub-section (3), the District Forum may proceed with the complaint in the manner provided under this Act:Provided that where a complaint has been admitted by the District Forum, it shall not be transferred to any other court or tribunal or any authority set up by or under any other law for the time being in force.Explanation.— For the purposes of this section, “recognised consumer association” means any voluntary consumer association registered under the Companies Act, 1956 (1 of 1956) or any other law for the time being in force.